

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William Rasenberger	Team: Squad #07	CCRB Case #: 202105828	☐ Force	☐ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 09/25/2021 1:20 AM, Tuesday, 12/14/2021 9:55 AM	Location of Incident: 7 Train between 42nd Street/Times Square Station and 34 Hudson Street station	18 Mo. SOL 3/25/2023	Precinct: 10		
Date/Time CV Reported Wed, 09/29/2021 1:49 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 09/29/2021 1:49 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Vincent Crisci	22935	950247	TB DT01
2. PO Babajide Ogunade	04061	937210	TB DT01

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Erick Salas	17727	964270	TB DT01
2. PO Charlin Ramos	26560	967278	TB DT01
3. PO Christian Gil	04971	967522	TB DT01
4. SGT Jairo Jimenez	03502	952895	TB DT01

Officer(s)	Allegation	Investigator Recommendation
A . PO Vincent Crisci	Abuse: On September 25th, 2021, Police Officer Vincent Crisci threatened to arrest § 87(2)(b) inside of the 7 train in Manhattan.	
B . PO Vincent Crisci	Abuse: On September 25th, 2021, Police Officer Vincent Crisci detained § 87(2)(b) at the 34th Street - Hudson Yards station in Manhattan.	
C . PO Babajide Ogunade	Abuse: On September 25th, 2021, Police Officer Babajide Ogunade detained § 87(2)(b) at the 34th Street - Hudson Yards station in Manhattan.	
D . PO Vincent Crisci	Abuse: On September 25th, 2021, Police Officer Vincent Crisci stopped § 87(2)(b) at the 34th Street - Hudson Yards station in Manhattan.	
E . PO Babajide Ogunade	Abuse: On September 25th, 2021, Police Officer Babajide Ogunade stopped § 87(2)(b) at the 34th Street - Hudson Yards station in Manhattan.	
F . PO Vincent Crisci	Abuse: On September 25th, 2021, Police Officer Vincent Crisci stopped individuals at the 34th Street - Hudson Yards station in Manhattan.	
G . PO Babajide Ogunade	Abuse: On September 25th, 2021, Police Officer Babajide Ogunade stopped individuals at the 34th Street - Hudson Yards station in Manhattan.	
H . PO Babajide Ogunade	Untruthful Stmt.: On December 14th, 2021, Police Officer Babajide Ogunade provided an inaccurate official statement to the CCRB at 100 Church Street in Manhattan.	

Case Summary

On September 29th, 2021, the CCRB received the following website complaint from § 87(2)(b) [BR 1].

On September 25th, 2021, § 87(2)(b) and two other friends boarded the downtown 7 subway train at 42nd Street-Times Square. An intoxicated man was sleeping in the same car as them. § 87(2)(b) may have tried to wake the man up so that he would not miss his stop. (She did not provide a statement for the investigation.) From an adjacent car, Officer Babajide Ogunade of the Transit Bureau – District 1 (TBD1) -- who was assigned to an anti-larceny detail with Officers Vincent Crisci and Erick Salas, also of TBD1 – ostensibly saw § 87(2)(b) pull on the sleeping man's bag. Moments later, all three officers entered the car and accused § 87(2)(b) of trying to steal the man's bag. When § 87(2)(b) asked if he and his friends were being detained, PO Crisci replied by asking "do you want § 87(2)(b) in handcuffs? Because that can happen" and other rhetorical questions to the same effect [**Allegation A: Abuse of Authority – Threat of Arrest**, § 87(2)(g)]. At the 34th Street – Hudson Yards station, the officers, § 87(2)(b) and their two friends, as well as the man whose bag § 87(2)(b) allegedly tried to steal, exited onto the platform. Officers Crisci and Ogunade directed § 87(2)(b) group to sit down, then called for assistance from Sgt. Jairo Jimenez, and Police Officers Christian Gil and Charlin Ramos. Officers Crisci and Ogunade were responsible for § 87(2)(b) being detained [**Allegations B and C: Abuse – Other: Detention**, § 87(2)(g)] in that based on their testimony, that they had seen her grab the alleged victim's bag, PO Gil briefly placed her under arrest. PO Ramos and Sgt. Jimenez each then spoke with the alleged victim. Throughout all this time, Officers Crisci and Ogunade had § 87(2)(b) friends, including § 87(2)(b) stopped without reasonable suspicion [**Allegations D – G: Abuse of Authority – Stop**, § 87(2)(g)]. When the alleged victim told both PO Ramos and Sgt. Jimenez that § 87(2)(b) had not bothered or stolen from him, she was released, and § 87(2)(b) and his other two friends were allowed to leave. On December 14, 2021, PO Ogunade inaccurately testified to the CCRB that he had seen § 87(2)(b) pull the alleged victim's bag toward herself [**Allegation H: Untruthful Statements – Inaccurate Statement**, § 87(2)(g)].

The investigation is in possession of five cellphone videos [BR 2 - 6] and six body-worn camera recordings [BR 7].

Findings and Recommendations

Allegation A: Abuse of Authority – On September 25th, 2021, Police Officer Vincent Crisci threatened to arrest § 87(2)(b) inside of the 7 train in Manhattan.

Allegation B: Abuse of Authority – On September 25th, 2021 Police Officer Vincent Crisci detained § 87(2)(b) at the 34th Street – Hudson Yards station in Manhattan.

Allegation C: Abuse of Authority – On September 25th, 2021 Police Officer Babajide Ogunade detained § 87(2)(b) at the 34th Street – Hudson Yards station in Manhattan.

Allegation D: Abuse of Authority – On September 25th, 2021, Police Officer Vincent Crisci stopped § 87(2)(b) at the 34th Street – Hudson Yards station in Manhattan.

Allegation E: Abuse of Authority – On September 25th, 2021, Police Officer Babajide Ogunade stopped § 87(2)(b) at the 34th Street – Hudson Yards station in Manhattan.

Allegation F: Abuse of Authority – On September 25th, 2021, Police Officer Vincent Crisci stopped individuals at the 34th Street – Hudson Yards station in Manhattan.

Allegation G: Abuse of Authority – On September 25th, 2021, Police Officer Babajide Ogunade stopped individuals at the 34th Street – Hudson Yards station in Manhattan.

At about 1:20 a.m. on September 25th, 2021, § 87(2)(b) § 87(2)(b) (who did not respond to multiple contact attempts) and two of their friends boarded the downtown 7 train at the Times Square – 42nd Street station. § 87(2)(b) noticed a man that appeared to be sleeping. He stated during his CCRB interview [BR 8] that one of his friends, identified as § 87(2)(b) by the investigation, asked whether she should wake the man up. § 87(2)(b) told her to not to, and so neither she nor their other friends interacted with the man in any way, or even approached within five feet of him; § 87(2)(b) never touched his bag. § 87(2)(b) and his friends sat at least fifteen feet away from the train car ahead, where the officers were; it would have been impossible, § 87(2)(b) said, for the officers to clearly see him and his friends. During their CCRB interviews [BR 9 and 10], PO Crisci and PO Ogunade were consistent that the 7 line is prone to larcenies, including those perpetrated by “lush workers,” who target drunk or sleeping passengers. The officers, along with PO Salas, were assigned to an overtime detail meant to combat these kinds of crimes, and were riding in a car adjacent to the one § 87(2)(b) and his friends were in. PO Ogunade and PO Crisci each testified that § 87(2)(b) sat on the same side as a sleeping man, about two seats away from him. PO Ogunade stated that the man had a bag on the seat next to him, and that he saw § 87(2)(b) pull the bag toward herself. He then saw the man pull the bag back. Contrastingly, PO Crisci stated the backpack was originally on the man’s lap. He saw § 87(2)(b) reach in the direction of the man but did not see her touch his bag -- there was a pole obstructing his view. The man suddenly woke up. PO Crisci then noticed that his bag was no longer in his lap, but on the seat next to him, closer to where § 87(2)(b) was sitting. Seconds later, PO Ogunade told PO Crisci that he had seen § 87(2)(b) pull on the man’s bag. PO Salas did not witness § 87(2)(b) reach for the bag.

PO Ogunade stated that he believed § 87(2)(b) had tried to steal the man’s bag. He did not believe that she was trying to wake him up, or that her behavior was otherwise innocuous, because § 87(2)(b) clearly a companion of hers, appeared to be acting as a lookout. Consistently, PO Crisci mentioned that § 87(2)(b) and his male companion continuously looked up and down the car in a highly suspicious manner at or around the time § 87(2)(b) ostensibly grabbed the man’s bag. PO Crisci stated he and his partners waited to see whether § 87(2)(b) or her friends would commit any other illegal acts. PO Ogunade and PO Crisci were consistent that § 87(2)(b) never attempted to open the man’s bag. PO Crisci did not see § 87(2)(b) touch the bag after supposedly pulling on it; he did not suspect that § 87(2)(b) was trying to steal the bag, but that she was “just trying to have fun and mess with” the alleged victim. About a minute after § 87(2)(b) alleged crime, according to PO Crisci, all three officers walked into the next car to speak with § 87(2)(b).

According to PO Ogunade, § 87(2)(b) slid a few seats further away from the man as the officers entered the car. PO Crisci testified that she pretended to be asleep. PO Ogunade asked why she had just grabbed the sleeping man’s bag. She replied that she’d been trying to wake him up, but PO Ogunade did not believe her. At 00:00 in PO Ogunade’s BWC video [BR 11] the alleged victim is seen in the bottom left of the frame. § 87(2)(b) is sitting on the same bench, on the other side of a pole, and about ten feet away from the man. § 87(2)(b) stated that he was fairly certain that PO Ogunade initially accused his entire group of pulling on the man’s bag. After a while, though, the officers focused their attention on § 87(2)(b). In a video recorded by one of § 87(2)(b) companions [BR 3], at 00:02, PO Ogunade says “I saw you guys when you came in.” § 87(2)(b) is heard stating “I was just saying I wanted to wake him up.” PO Ogunade states at 00:14 “when you got on the train, [the alleged victim] was sleeping – I was watching – he was sleeping. So why did he wake up? And he’s pulling his bag back?” These statements contrast with PO Ogunade’s CCRB testimony, in that they suggest the officer *did not* witness § 87(2)(b) pull the man’s bag; PO Ogunade rather seems to be inferring that she did so based on (ambiguous) observations. (Similarly, as the train enters the Hudson Yards station, PO Ogunade tells his partners to call for other officers to further investigate, “cause he was pulling his bag back,” as captured in a cellphone video recorded by § 87(2)(b) (02:24-02:34) [BR 2].) His memo book entry [BR 24] states only

that he saw § 87(2)(b) “reach” for the passenger’s backpack.

At 00:21 in the same cellphone video [BR 3], § 87(2)(b) is heard asking “are we being detained?” PO Ogunade tells him “don’t say anything; you’re going to make this worse.” § 87(2)(b) nevertheless continues to ask “are we being detained?” After PO Ogunade finishes speaking to § 87(2)(b) and § 87(2)(b) he walks over to two passengers near the end of the subway car. This is seen beginning at 00:00 in § 87(2)(b) cellphone video [BR 2]. PO Ogunade apparently asks the passengers whether they witnessed anything. One of them says “no, I’m sorry,” and PO Ogunade walks away. PO Crisci, who did not recall speaking to any possible witnesses, and whose understanding was that the officers were simply going to admonish § 87(2)(b) and her friends, stated that he told them to “knock it off” and to not “mess with somebody.” He noted that § 87(2)(b) “argued” with him and acknowledged telling § 87(2)(b) that she could be arrested. At 00:30, in response to § 87(2)(b) PO Crisci asks “do you want to be detained?” He then mentions “getting put in handcuffs.” At 00:40, PO Crisci states, “if you want her in handcuffs” and then says something unintelligible. At 00:44, the officer states “if you want her in handcuffs, we can have that happen.” He repeats the statement, then says “so stop; quit while you’re ahead.” PO Crisci stated that, while he did not recall why he said this to § 87(2)(b) he could have in fact placed § 87(2)(b) under arrest, for attempted larceny or for “jostling,” that is, touching someone or his property with the intention of discovering valuable items. After receiving business cards from the officers, as the train pulled into the Hudson Yards – 34th Street station, § 87(2)(b) said “I don’t want no problems.” PO Crisci is heard yelling “if you don’t want problems, you just gotta be quiet.” This is captured beginning at 02:16 in the cellphone video that § 87(2)(b) recorded [BR 2]

PO Crisci testified that PO Ogunade was almost solely responsible for initiating the encounter and making decisions as it progressed. It was PO Ogunade’s decision, he stated, to stop § 87(2)(b) and her friends upon arriving at the Hudson Yards station. However, the video evidence shows that PO Crisci was near equally involved in the incident, including in making decisions. For one example, at 01:41 in § 87(2)(b) cellphone video, PO Crisci is heard saying to PO Salas “kick them out? Kick them out. Or just throw them in handcuffs.” (PO Ogunade tells PO Crisci “no, no, no, don’t worry,” and suggests that officers at the Hudson Yard station will investigate further.) When the train stopped, both PO Crisci and PO Ogunade repeatedly directed § 87(2)(b) and their two friends to sit on a bench on the platform.

This is seen at 01:16 in PO Ogunade’s BWC recording, and at 00:00 in PO Crisci’s [BR 22]. Meanwhile, PO Salas stands by uninvolved. At 01:23 in PO Ogunade’s recording, § 87(2)(b) asks the officer what his reasonable, articulable suspicion is. PO Ogunade does not respond but continues to order § 87(2)(b) and his friends to have a seat. At 02:32, PO Ramos, dressed in plainclothes, walks over to PO Ogunade. He is joined seconds later by PO Gil and Sgt. Jimenez. PO Ogunade explained during his interview that he needed these officers to question the alleged victim, who only spoke Spanish. At 02:11 in PO Crisci’s BWC, PO Gil asks PO Crisci “did you guys see her tugging?” PO Crisci and PO Ogunade both reply “yes.” At 02:22, PO Gil places § 87(2)(b) under arrest. At 04:07, § 87(2)(b) asks if he is being detained. PO Ogunade replies “yes, you’re being detained.” At 04:22, he tells § 87(2)(b) “whoever you was with committed a crime. I need your ID to do my paperwork.” At 04:28, § 87(2)(b) states “I did not commit a crime.” PO Ogunade replies “I didn’t say you did. You guys are together right?” At 04:46, PO Crisci is heard stating “this guy is making things worse for his friend and thinks he’s doing the right thing right now.” At 05:10, PO Ogunade requests § 87(2)(b) ID card, and again affirms that § 87(2)(b) is being detained. § 87(2)(b) repeatedly asks if PO Ogunade’s request for his identification is a lawful order. PO Ogunade does not directly respond.

PO Ogunade acknowledged that he had not observed any of § 87(2)(b) friends, including § 87(2)(b) commit a crime. He stopped them simply because they were companions of § 87(2)(b). PO Crisci testified that upon arriving at the Hudson Yards station, he also considered § 87(2)(b) and his two friends, as well as § 87(2)(b) to be detained upon suspicion

example, heard shouting at § 87(2)(b) that he is making things worse for § 87(2)(b) § 87(2)(g)

Under Administrative Guide 304-10, circumstances in which false or misleading official statements are made include, but are not limited to, verbal statements made pursuant to a statutory or procedural requirement. A false statement is defined as an intentional statement that a member of the service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made. An inaccurate statement is one that a member of the service knows, or should know, includes incorrect material information. There is no intent to deceive, but rather the member's actions are grossly negligent. NYPD Administrative Guide 304.10 [BR 23].

§ 87(2)(g)

Allegation H: On December 14th, 2021, Police Officer Babjide Ogunade provided an inaccurate official statement to the CCRB at 100 Church Street in Manhattan.

As explained above, the investigation has determined that PO Ogunade did not observe § 87(2)(b) grab the alleged victim's bag. Rather, he made a number of ambiguous observations, on the basis of which he may have concluded that § 87(2)(b) had touched the bag. During his CCRB interview [BR 10], however, between 04:32 and 04:40, PO Ogunade testified explicitly that he had seen § 87(2)(b) pull the bag toward her. This statement was material to the outcome of the investigation, given that the allegations pleaded against the officers included threat of arrest, stop, and unlawful detention, all of which resulted from PO Ogunade's ostensible suspicion that § 87(2)(b) had been trying to steal the bag.

Under Administrative Guide 304-10, a false statement is an intentional statement that a member of the service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made. NYPD Administrative Guide 304 – 10 [BR 23]

§ 87(2)(g)

Civilian and Officer Histories

- This is the first complaint to which either § 87(2)(b) [BR 18] or § 87(2)(b) [BR 19] have been parties.
- PO Ogunade has been a member of service for seventeen years, over which time he has

substantiated. § 87(2)(g)

- substantiated. § 87(2)(g) The case
file includes his summary of employment history [BR 27].

Mediation, Civil, and Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 7

Investigator: Will Rasenberger Inv. Will Rasenberger 02/2/2022
Signature Print Title & Name Date

Squad Leader: _____

Signature	Print Title & Name	Date
	Manager Vanessa Rosen	2/11/2022

Reviewer: _____

Signature	Print Title & Name	Date
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